

the law permits, the Court in such a case should recognize the act, and support the validity of the trust.

Some Judges have adopted the one view of the question, and some the other (*c*). But in the leading case of [*71] *Kekewich v. Manning* (*a*), Lord Justice K. Bruce observed, "It is upon legal and equitable principle, we apprehend, clear that a person *sui juris* acting freely, fairly, and with sufficient knowledge, ought to have and *has it in his power* to make in a binding and effectual manner a voluntary gift of any part of his property, *whether capable or incapable of manual delivery, whether in possession or reversionary or howsoever circumstanced.*" And it is conceived that this principle will for the future prevail (*b*), [but since debts and legal choses in action have been made transferable at law, questions under this head will be of less frequent occurrence (*c*).]

Where the subject was incapable of transfer as a debt, and a parol declaration of trust was made to the *debtor*, who undertook to hold it upon those trusts, it was held to be a valid settlement without any transfer or attempt at transfer (*d*).

[7. Where a person wrote a letter to one of the two trustees of the settlement made on his first marriage, stating that he was desirous of making a settlement of six policies on the children of that marriage, and undertaking to make to the trustee and another trustee, to be named by the settlor, an assignment by way of settlement of the policies, *and until the settlement was executed he was to be bound by the agreement, as if the settlement were actually executed*, and afterwards he

(*c*) The authorities for the validity of the trust are, *Fortescue v. Barnett*, 3 M. & K. 36; *Roberts v. Lloyd*, 2 Beav. 376; *Blakely v. Brady*, 2 Drur. & Walsh, 311; *Airey v. Hall*, 3 Sm. & Gif. 315; *Parnell v. Hingston*, 3 Sm. & Gif. 337; *Pearson v. Amicable Assurance Office*, 27 Beav. 229. In favour of the opposite view, see *Edwards v. Jones*, 1 M. & Cr. 226; *Ward v. Audland*, 8 Sim. 571; *C. P. Cooper's Cases*, 1837-1838, 146; 8 Beav. 201; *Meek v. Kettlewell*, 1 Hare, 404;

Scales v. Maude, 6 De G. M. & G. 43; *Sewell v. Moxsy*, 2 Sim. N. S. 189.

(*a*) 1 De G. M. & G. 187, 188.

(*b*) See *Wilcocks v. Hannington*, 5 Ir. Ch. Rep. 45; *Penfold v. Mould*, 4 L. R. Eq. 564; [*Lee v. Magrath*, 10 L. R. Ir. 45, 313.]

[(*c*) *Lee v. Magrath*, 10 L. R. Ir. 313.]

(*d*) *Roberts v. Roberts*, 11 Jur. N. S. 992; reversed 12 Jur. N. S. 971. As to the legal transfer, see now 30 & 37 Vict. c. 60, s. 25, rule 6.